

Ramesh Chandra v. State of U.P.

Allahabad High Court · Division Bench · 29 April 2016 · WRIT - C No. 19415 of 2016 · **Writ disposed; relegated to clause 6.5(b); recovery stayed; supply restored on deposit.**

HEADNOTE

A consumer who disputes the accuracy of a bill for which recovery has been initiated must complain to the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The High Court would not decide disputed questions of fact in writ. The petitioner was given one week to complain and the authority two weeks to decide; recovery was stayed for four weeks or until that decision, whichever earlier; supply was to be restored on deposit of Rs 10,000 subject to the authority's order.

FACTUAL SUMMARY

The petitioner, Ramesh Chandra, approached the Allahabad High Court against recovery proceedings started by the respondent electricity corporation for alleged outstanding dues. He challenged the correctness of the bill on which recovery had been initiated. Counsel for both sides were heard. The Division Bench disposed of the writ on 29 April 2016 with liberty to pursue the statutory billing-complaint route and with interim directions on recovery and restoration of supply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-complaint-as-alternative-to-writ

HOLDING

Where the consumer disputes the accuracy of the bill for which recovery has been initiated, disputed questions of fact are to be raised by complaint before the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005, and the writ court will not decide those facts; recovery may be kept in abeyance pending that complaint and supply restored on a specified deposit subject to the authority's decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL AND THE MERITS OF THE RECOVERY

Writ not entertained on disputed questions of fact; relegated to clause 6.5(b). ¶ 1